

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 6.08.180, FEEDING GEESE AND DUCKS PROHIBITED, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO INCLUDE SEAGULLS AND EXTEND THE FEEDING PROHIBITION TO ALL PROPERTY WITHIN CITY LIMITS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1.

WHEREAS, The feeding of wild animals attracts more animals and can lead to habituated animals becoming aggressive to humans, a large concentration of animals increasing the spread of disease outbreaks, and the noise, animal droppings, and potential for property damage caused by a concentration of wild animals constituting a nuisance;

WHEREAS, Wyoming Statute § 15-1-103(a)(xix) provides that the governing bodies of all cities and towns may declare and abate nuisances and impose fines upon parties who create, continue or permit nuisances to exist;

WHEREAS, Wyoming Statute § 15-1-103(a)(xli) authorizes municipalities to adopt ordinances necessary for the health, safety and welfare of the city or town;

WHEREAS, feeding seagulls has created a public health concern and affects the quality of life of neighbors; and

WHEREAS, the City Council should amend Cheyenne Municipal Code 6.08.180 as shown in section 2.

Section 2. That Section 6.08.180, Feeding geese and ducks prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the City of Cheyenne, Wyoming, is hereby amended to read:

6.08.180 - Feeding seagulls, geese and ducks prohibited.

- A. No person may feed, provide or give food or any other edible item to any seagull, goose, or duck, or to any gaggle of geese or flock of seagulls or ducks, ~~in or upon~~ within the city limits.

~~1. Any property owned by the city of Cheyenne within the city limits;~~

~~2. Any park, golf course or other recreation, open space, or public use area within the city limits which is operated by the city of Cheyenne; or~~

~~3. Any park, golf course, or other recreation, open space, or public use area within the city limits which is owned by the city of Cheyenne and operated by any third person or entity pursuant to a lease or other use agreement with the city of Cheyenne.~~

- B. Any person who violates this section shall be guilty of a misdemeanor, punishable by a fine of not ~~less than ten dollars (\$10.00) and not more than twenty five dollars (\$25.00)~~ more than seven hundred fifty dollars (\$750.00).
- C. In lieu of a citation for a violation of this section, an animal control officer or police officer may issue one (1) written warning to any person who has not previously been convicted of violating this section.
- D. No more than one citation alleging a violation of this section may be issued to any one (1) person in any ~~twenty four hour~~ twenty-four (24) hour period.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____

